

25CV00254 C Norman Borgatello vs Nadia Bernardi

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-05-29

Motion: Motion: Judgment on the Pleadings

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Tentative Ruling: C Norman Borgatello vs Nadia Bernardi

Case Number

25CV00254

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 05/29/2026 - 10:00

Nature of Proceedings

Motion: Judgment on the Pleadings

Tentative Ruling

Plaintiff C. Norman Borgatello's motion for judgment on the pleadings is denied.

Background:

This action commenced on January 14, 2025, by the filing of the complaint by plaintiff C. Norman Borgatello against defendant Nadia Bernardi for Declaratory Relief on Written Contract.

As alleged in the complaint:

On August 7, 2018, plaintiff and defendant entered into a written contract regarding real property located at 920 Flora Vista Drive, Santa Barbara (the "agreement"). (Compl., ¶ 2 & Exh. A.)

Plaintiff has performed all required obligations under the agreement including the transfer of \$600,000.00 in cash to defendant. (Compl., ¶ 3.)

Defendant agreed to maintain title to the property free of liens, but on November 9, 2018, defendant obtained a loan secured by a deed of trust against the property for \$70,000.00 and has refinanced said "Mortgage" multiple times since that date and now has an outstanding balance of approximately \$600,000.00. (Compl., ¶¶ 4, 5.)

The agreement provides that, at any time, plaintiff can request that defendant record a grant deed in favor of plaintiff as to 50 percent of the property. (Compl., ¶ 6.)

The agreement further provides that after three years from the date of the agreement, either party may demand the sale of the property, and all parties must cooperate in the sale. (Compl., ¶ 7.) More than three years have elapsed since the signing of the agreement. (Ibid.)

On November 20, 2024, plaintiff sent defendant a letter asking defendant to promptly record a grant deed in his plaintiff's favor and to cooperate in listing the property for sale. (Compl., ¶ 8.) Defendant has not responded to the letter. (Compl., ¶ 9.)

On March 19, 2025, defendant answered the complaint with a general denial and 16 affirmative defenses.

Plaintiff now moves for judgment on the pleadings.

Defendant has not filed opposition or any other response to the motion.

Analysis:

A plaintiff may move for judgment on the pleadings if "[t]he complaint states facts sufficient to constitute a cause of action against a defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc., § 438, subd. (c)(1)(A).)

"The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (Code Civ. Proc., § 438, subd. (d).)

"Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed." (Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1174.)

Plaintiff's four paragraph "grounds for the motion to be granted" essentially argues that defendant's answer is uncertain because it lacks sufficient factual details. In support, plaintiff cites to Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076 and Perkins v. Superior Court (1981) 117 Cal.App.3d 1. Neither of those cases involved a motion for judgment on the pleadings and plaintiff misapplies the holdings of the cases.

The motion for judgment on the pleadings is in the nature of a special demurrer based on uncertainty and ambiguity.

"A motion by a plaintiff for judgment on the pleadings is in the nature of a general demurrer to the answer, and the motion must be denied if the answer raises a material issue or sets up affirmative matter constituting a defense. Such a motion does not operate as a special demurrer. Uncertainty and ambiguities must be specifically raised by proper procedure. [Citations.] Where the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted. [Citation.] The moving party admits the untruth of his own allegations insofar as they have been controverted, and all such averments must be disregarded whether there is a direct and specific denial or an indirect denial by virtue of affirmative allegations of a contrary state of facts. [Citation.] Every allegation affirmatively pleaded in the answer must be deemed true. [Citation.]" (Barasch v. Epstein (1957) 147 Cal.App.2d 439, 442-443.)

"The filing of a general denial denies in one sentence all the allegations of the complaint." (Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1545.)

Defendant's general denial alone puts all material allegations of the complaint in dispute, and, in ruling on a motion for judgment on the pleadings against a defendant, the court must treat defendant's denials as true. In addition to the general denial, defendant asserts 16 affirmative defenses that effectively challenge plaintiff's allegations. Plaintiff's motion will be denied.

Judges

Judge Donna D. Geck

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